

MEMORANDUM TO THE FILE

(This is only applicable to acquisitions under the Simplified Acquisition Threshold. Acquisition using FAR Subpart 13.5 shall follow the special documentation requirements at FAR 13.501.)

Subj: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold

II. DESCRIPTION OF ITEM OR SERVICE:

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, and the required delivery date/period of performance.

The objective of this task is to have the vendor, Keysight Technologies (OEM), perform calibration/repair services for Code 137/950 Keysight Technology Standards.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. ☒ ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ☒ RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the Government's need.

C137 is only allowed to operate if its quality systems and scope of work have been certified by a NAVSEA-04 audit team based on the standards set forth in NAVSEA 04-4734B (ANSI/NCSL Z540-1) as mandated by OPNAVINST 3960.16. NAVSEA 04-4734B, Section 14, mandates Code 137 laboratory shall ensure and be able to demonstrate the preferred manufacturer is competent to perform the activities in question and complies with the same criteria of competence as Code 137 laboratory with respect to the work being subcontracted and/or the equipment being purchased. This manufacturer has demonstrated to C137 they perform measurements and possess equipment/standards traceable to the National Research Council (NRC) and have been certified by a recognized accrediting body to be in compliance with ANSI/NCSL Z540-1. Use of other sources has not been authorized by the U.S. Navy METCAL program and C137 Metrology Engineering, and will not be accepted to make certified measurements within the Laboratory, Norfolk Naval Shipyard, or the Fleet.

2. ☐ EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

OR

Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. NOTE: If there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RESPONSIBLE SOURCE, should be left blank).

3. ☐ **OTHER REASONS.** *Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.*

B. ☐ **BRAND NAME.** Item required must be a brand name product, or feature of a product, particular to one manufacturer. *Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs.*

C. ☐ **UNUSUAL AND COMPELLING URGENCY.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required: *Explain the impact to the mission if the date above is not met, any special circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.*
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATIONS/APPROVALS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

JONES.MICHAEL
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Signature

Michael Jones 757-445-8818

Name (Printed) / Phone #

02/26/2026

Date

B. Contracting Officer Certification/Approval: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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Signature

Denise J Swain 757.396.2206

Name (Printed) / Phone #

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Date